

Smt. Deepshikha Purohit vs Shri Pursotam Purohit on 21 September, 2021

Author: Sharad Kumar Sharma

Bench: Sharad Kumar Sharma

HIGH COURT OF UTTARAKHAND AT NAINITAL

Civil Misc. Transfer Application No.34 of 2021

Smt. Deepshikha Purohit

.....Applicant

Versus

Shri Pursotam Purohit

.... Respondent

Present :-

Mr. Sagar Kothari, Advocate for the applicant.

Mr. Pankaj Purohit, Advocate for the respondent.

Dated: 21st September, 2021

ORDER

Hon'ble Sharad Kumar Sharma, J.

This Transfer Application is marked as "part heard".

2. In fact, the principle relief in the Transfer Application, which has been preferred by the defendant/wife, to the proceedings of the Original Suit No. 694 of 2020, Pursotam Purohit Vs. Deepshikha Purohit, which was instituted before the Court of Principal Judge Family Court, Dehradun, was with the prayer for transferring the proceedings to the Principal Judge Family Court, Rudraprayag.

3. At the time when the Transfer Application was considered by this Court, particularly taking into consideration the fact that the parties to the matrimony, were having two young children of 9 years and 5 years respectively, their interest was also to be taken care of by the Court at the time of considering the matrimonial dispute, may it had been adjudicated at any stage, including the stage under Section 24 of the C.P.C. Hence, in order to carve out a middle path, so that the family may join together and reunite, the matter was directed to be placed before the Mediator, i.e. the Registrar (Inspection), to make an effort for mediation. She has submitted a report on 31st August, 2021, that some steps had been taken, but it requires a further session of a joint meeting, which was once again conducted on 20th September, 2021, and ultimately, the Mediator has reported that the amicable settlement has failed.

4. When the report was submitted before the Court on the said date, since the parties were

appearing in person, they were requested to join the proceedings of the Transfer Application, along with their respective counsel to be heard in my Chamber.

5. The parties appeared in person, along with their respective counsel.

6. In fact, when the Court had personally interacted with them, there were very minor scuffles due to ego problems, which were prevailing amongst them, which could be easily resolved in order to revive the family and particularly to protect the interest of the minor children. Because otherwise the parties to the Transfer Application were indulging themselves in multifarious judicial proceedings, for example under the Domestic Violence Act and Section 125 and the proceedings before this Court, i.e. under Section 24 of the Hindu Marriage Act.

7. Yesterday, when the matter was taken up in my Chamber, the proceedings were held in a very cordial circumstance. Both the parties were found to be quite comfortable with one another. In fact, the following determinations were culled out, in pursuance to the proceedings, which was held yesterday in my Chamber.

i. The applicant, as well as respondent voluntarily agreed that they are willing to live together peacefully and to discharge their matrimonial obligation together.

ii. The applicant also voluntarily agreed, that in order to resolve the controversy and to discharge her matrimonial obligations, she expresses her willingness to give away her job, in which, she is presently engaged on daily wage basis.

iii. But the only apprehension, which she had was that she may be financially deprived of the financial assistance, which had been otherwise provided to her by the orders passed in the proceedings under Section 125 and under the Domestic Violence Act, and if the total amount, which has been determined to be paid in the two proceedings, which amounts to about Rs.13,000/- that was to be safeguarded and be ensured to be paid by the husband, so that she may have a financial subsistence and viability in order to maintain the children also.

iv. She expressed an apprehension, though unfounded, that the opposite party may be restrained to physically assault her or maltreat her, when they reunite in pursuance to today's proceedings to discharge their matrimonial obligations in terms of the settlement, which was entered into in my Chamber.

8. On the aforesaid backdrop, and subject to the aforesaid conditions, this Court directed the matter to be placed for today in order to pass an order, to settle the terms between the parties to join together and to reunite and to discharge the matrimonial obligations.

9. Though Yesterday, the parties agreed that the respondent would be visiting the in-laws place, in order to take the wife, applicant, herein, on 2nd Saturday of October, 2021, but today, before the matter could be taken up, the learned counsel for the applicant has submitted that since she has to take some entrance examination, which is scheduled to be held on 28th October, 2021, at Haridwar,

hence, the respondent may be directed to visit his in-law place in order to take the applicant with him from there to her matrimonial home immediately after the conclusion of the said selection process.

10. The said prayer is accepted and the respondent is directed to visit the place of residence of the applicant, i.e. his in-law's place at Rudraprayag on 30th October, 2021.

11. It was assured by the applicant and his Counsel too, that the respondent would be treated with all decency and soberness, which is expected by the in-law to be parted towards the son-in-law of the family.

12. Thereafter, the applicant would join the company of the respondent and would stay together at the place of residence of the husband, i.e. at Balawala, Dehradun.

13. The apprehension, which was expressed by the applicant pertaining to the financial crisis, which she may face, this Court directs the respondent, that whatsoever amount has been so far settled in the proceedings, which had been held under the Domestic Violence Act, as well as in the proceedings under Section 125, that would be continued to be remitted to the applicant positively by 10th of each month.

14. The respondent has further very candidly assured that the apprehension expressed by the applicant that she may be maltreated or may be physically assaulted by the respondent, though there is no credible material on record as such, but this Court still in order to instil confidence and in order to overrule the apprehension expressed by the applicant, it is hereby provided that in an event, if there is any untoward incident as such, it will be open for her to approach the District Judge, Dehradun, who, in turn, will inform this Court about the nature of the complaint and will make efforts to resolve it amicably.

15. On account of above arrangement, it goes without saying that the proceedings of the Domestic Violence Act and the proceedings under Section 125, which is pending before the respective Courts, would not be proceeded with further till the pendency of the present Transfer Application or till any future development takes place inter se between the parties.

16. The respondent is directed to place the copy of this order in the proceeding before the Domestic Violence Court, as well as the Court, where the proceedings under Section 125 are being carried.

17. Put up this Transfer Application, in case of any occurrence of any eventuality in future.

(Sharad Kumar Sharma, J.) 21.09.2021 Shiv